

STATE OF NEW YORK

2107--A

2025-2026 Regular Sessions

IN SENATE

January 15, 2025

Introduced by Sens. COONEY, PERSAUD -- read twice and ordered printed, and when printed to be committed to the Committee on Transportation -- recommitted to the Committee on Transportation in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the vehicle and traffic law, in relation to the acceptance of electronic signatures on form MV-82, application for registration/title

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. The vehicle and traffic law is amended by adding a new title 11-A to read as follows:

TITLE 11-A
ELECTRONIC SIGNATURES
ARTICLE 48-D
ELECTRONIC SIGNATURES

Section 2500. Definitions.

2501. Acceptance of electronic signatures.

2502. Requirements and limitations.

2503. Utilization.

2504. Conflict.

§ 2500. Definitions. For the purposes of this article:

(a) "Document" means form MV-82, application for registration/title, as prescribed by the commissioner, and shall not include any other form, certificate, record, or instrument required under this chapter.

(b) "Electronic signature" means an electronic sound, symbol, or process, attached to or logically associated with form MV-82 (application for registration/title) and executed or adopted by a person with the intent to sign, agree, or otherwise acknowledge the information and facts to be accurate and correct.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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(c) "Electronic" means relating to technology having electrical, digital, magnetic, wireless, optical, electromagnetic, or similar capabilities as used solely in connection with form MV-82 (application for registration/title).

§ 2501. Acceptance of electronic signatures. (a) The commissioner may accept electronic signatures on form MV-82.

(b) An electronic signature affixed to form MV-82, when permitted by the commissioner, shall have the same force and legal effect as a handwritten "wet ink" signature.

§ 2502. Requirements and limitations. (a) The commissioner:

(1) may require that form MV-82 containing an electronic signature to include an indication that the signature is electronic;

(2) may establish procedures for the acceptance and processing of form MV-82 executed with an electronic signature, including procedures for invalidating any previously submitted paper version of such form when replaced by an electronic submission;

(3) may not refuse to accept form MV-82 executed with an electronic signature solely because such signature is electronic, provided the electronic signature complies with standards established by the commissioner;

(4) may establish standards for electronic signature processes and vendors used for form MV-82, including security, authentication, and fraud prevention requirements;

(5) shall not require a form MV-82 executed with an electronic signature to be converted to physical format by printing for any purpose, except when submission by physical means is required because the commissioner does not have an electronic process or system available to accept such form MV-82, or where an applicant does not have access to the electronic process or system;

(6) shall not impose any additional requirement upon an electronic signature on form MV-82 except as authorized by this section; and

(7) may require reasonable authentication or verification measures for electronic signatures on form MV-82, including such methods as determined necessary by the commissioner to ensure integrity and prevent fraud.

(b) The commissioner may establish security, verification, and record-keeping standards for electronic signatures on form MV-82, including measures necessary to ensure the integrity of the submission and prevent fraud.

(c) This section shall not be construed to require, limit, prohibit, or otherwise hinder the commissioner from providing electronic services or systems for form MV-82, including electronic signature capturing or identity verification related solely to such form.

§ 2503. Utilization. Electronic signatures used on form MV-82 shall be used solely for the purpose of executing such form as indicated by the signer and shall be associated with the electronic submission of such form in a manner sufficient to verify authenticity and prevent unauthorized alteration.

§ 2504. Conflict. In the event of a conflict between this section and any other provision of this chapter or article three of the state technology law, this section shall apply solely with respect to form MV-82.

§ 2. This act shall take effect on the one hundred twentieth day after it shall have become a law.